

Defendants' Motion to Vacate Default and Default Judgment is DENIED. The Court finds that, based on legal filings made by the defendants, the address where substitute service was completed constitutes a valid service address for the defendants for purposes of this litigation. Further, service was made by a registered process server, which creates a rebuttable presumption that service was properly completed. (Ev. Code Sec. 647). Defendants have failed to successfully rebut this presumption. While the papers were left on the front porch, this was only after the process server contacted the daughter of the defendants, she refused to accept the documents and abruptly shut the door on the process server in a continuing pattern of evasion. Therefore, she was aware of the papers and their presence and such was a valid deliver under the Code.

The court takes note that the record in this case shows a long history of evasion and chicanery on the part of the defendants. There is evidence of questionable asset transfers and other activities that appear designed to avoid the consequences of defendants' business losses. In addition to the facts set forth in the record, the court finds good reason to question the credibility of the defendants.

Finally, defendants' request for judicial notice is DENIED. Judicial notice may not be taken of any matter unless authorized or required by law. (Ev. Code 450) Here, the specific information requested is not of the type that is subject to judicial notice. Further, it is a component of public filings so it could not even be subject to a protective order since defendants have already exposed the information in other forums.

THE VALLEJO POLICE OFFICERS' ASSOCIATION v. STATE OF CALIFORNIA v. CITY OF VALLEJO, et al.
Case No. cu24-03516

Motion by Defendant CITY OF VALLEJO to Compel Further Responses to Requests for Production of Documents, Set One, and Request for Monetary Sanctions

TENTATIVE RULING

With the clarifications made in opposition that further confirm that Plaintiff has produced all documents in his possession, custody or control that are responsive to the nine requests for production at issue in this motion, without withholding any due to a claim of privilege, and the confirmation in the reply that the motion is effectively being withdrawn, the court denies the motion as moot.

The court declines under C.C.P. §2031.310(h) to impose sanctions against the moving party or his counsel, finding substantial justification to press for confirmation that despite the significant allegations of wrongful disclosures made by the moving party and resulting damages raised by Plaintiff's 66-page complaint, the only responsive documents Plaintiff identified and produced were those obtained from the CITY's website, and to the extent they were produced in redacted form, were not redacted by Plaintiff or his counsel.